

Federal Constitution

NOTES

Art. 61

Clause (4)

- a. Added by Act 10/1960, section 10, in force from 31-05-1960.
- b. The words “Deputy Minister” substituted for the words “Assistant Minister” by Act A31, subsection 10(1), in force from 24-03-1971.
- c. The words “and a Parliamentary Secretary” were added by Act A631, section 4, in force from 24-02-1986.

Art. 62

Clause (3)

- a. Act 14/1962, section 32, in force from 21-06-1962, inserted the words “and to sections 10 and 11 of the Thirteenth Schedule”.
- b. Act 19/1964, subsection 7(2), in force from 30-07-1964, inserted the words “unless he is a member of the House by virtue only of paragraph (b) of Clause (1A) of Article 57”.

Privileges of Parliament

63. (1) The validity of any proceedings in either House of Parliament or any committee thereof shall not be questioned in any court.

(2) No person shall be liable to any proceedings in any court in respect of anything said or any vote given by him when taking part in any proceedings of either House of Parliament or any committee thereof.

(3) No person shall be liable to any proceedings in any court in respect of anything published by or under the authority of either House of Parliament.

(4) Clause (2) shall not apply to any person charged with an offence under the law passed by Parliament under Clause (4) of Article 10 or with an offence under the Sedition Act 1948 [*Act 15*] as amended by the *Emergency (Essential Powers) Ordinance No. 45, 1970 [*P.U. (A) 282/1970*].

(5) Notwithstanding Clause (4), no person shall be liable to any proceedings in any court in respect of anything said by him of the Yang di-Pertuan Agong or a Ruler when taking part in any proceedings of either House of Parliament or any committee thereof except where he advocates the abolition of the constitutional position of the Yang di-Pertuan Agong as the Supreme Head of the Federation or the constitutional position of the Ruler of a State, as the case may be.

Remuneration of members

64. Parliament shall by law provide for the remuneration of members of each House.

Clerks of Senate and House of Representatives

65. (1) There shall be a Clerk to the Senate and a Clerk to the House of Representatives.

(2) The Clerk to the Senate and the Clerk to the House of Representatives shall be appointed by the Yang di-Pertuan Agong from among members of the general public service of the Federation and each shall hold office until he attains the age of compulsory

*NOTE—The Emergency (Essential Powers) Ordinance No. 45, 1970 [*P.U. (A) 282/1970*] has ceased to have effect on 21 June 2012 by virtue of Clause (7) of Article 150 of the Federal Constitution.

Federal Constitution

NOTES

Art. 63

Clause (4): Added by Act A30, section 3, in force from 10-03-1971.

See Houses of Parliament (Privileges and Powers) Act 1952 [*Act 347*].

Clause (5): Inserted by Act A848, section 5, in force from 30-03-1993.

Art. 64

See Members of Parliament (Remuneration) Act 1980 [*Act 237*].

Art. 65

Clause (2)

- a. Proviso inserted by Act A354, section 17, in force from Merdeka Day.
- b. *See* section 7 of the Constitution (Amendment) Act 1992 [*Act A837*] on the status of members of the Parliamentary Service upon repeal of the Parliamentary Service Act 1963 [*Act 394*].
- c. The words “the age of compulsory retirement for members of the general public service” substituted for the words “the age of fifty-five years” by Act A1130, section 7, in force from 28-09-2001.

retirement for members of the general public service unless he sooner resigns his office or is transferred to another office in the general public service.

(3) The persons holding the office of the Clerk to the Senate and Clerk to the House of Representatives immediately prior to the coming into force of this Clause shall, unless either person has not attained the age of fifty-five years and has opted to become a member of the general public service of the Federation, continue to hold office respectively on terms and conditions not less favourable than those applicable to him immediately before such coming into operation and shall not be removed from office except on the like grounds and in the like manner as a judge of the Federal Court, and in this respect the representation mentioned in Clause (3) of Article 125 shall be a representation made by the President of the Senate or, as the case may be, the Speaker of the House of Representatives.

(4) (*Repealed*).

(5) (*Repealed*).

Chapter 5—Legislative procedure

Exercise of legislative power

66. (1) The power of Parliament to make laws shall be exercised by Bills passed by both Houses (or, in the cases mentioned in Article 68, the House of Representatives) and, except as otherwise provided in this Article, assented to by the Yang di-Pertuan Agong.

(2) Subject to Article 67, a Bill may originate in either House.

(3) When a Bill has been passed by the House in which it originated it shall be sent to the other House; and it shall be presented to the Yang di-Pertuan Agong for his assent when it has been passed by the other House and agreement has been reached between the two Houses on any amendments made in it or when it is required to be so presented under Article 68.

(4) The Yang di-Pertuan Agong shall within thirty days after a Bill is presented to him assent to the Bill by causing the Public Seal to be affixed thereto.

Federal Constitution

NOTES

Art. 65—(cont.)

Clause (3)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. The word “Federal” substituted for the word “Supreme” by Act A885, section 7, in force from 24-06-1994.

Clauses (2) & (3)

The present Clauses were inserted by Act A837, section 5, in force from 20-11-1992, and replaced the earlier Clauses which read as follows:

“(2) The Clerk to the Senate and the Clerk to the House of Representatives shall be appointed by the Yang di-Pertuan Agong and, subject to Clause (3), each shall hold office until he attains the age of sixty years or such other age as Parliament may by law provide, unless he sooner resigns his office:

Provided that this Clause shall not be taken to prevent the Yang di-Pertuan Agong from making the appointment from amongst the members of the public services to which Part X applies for such shorter period as he may deem fit, and this proviso shall be deemed to have been an integral part of this Article as from Merdeka Day.

(3) The Clerk to the Senate and the Clerk to the House of Representatives may be removed from office on the like grounds and in the like manner as a judge of the Supreme Court, except that the representation mentioned in Clause (3) of Article 125 shall be a representation made by the President of the Senate or, as the case may be, the Speaker of the House of Representatives.”.

Clause (4)

- a. The present Clause was inserted by Act 14/1962, paragraph 15(a), in force from 21-06-1962, and replaced the earlier Clause which read as follows:

“(4) Before appointing any member of his staff the Clerk to the Senate shall consult the President of the Senate, and the Clerk to the House of Representatives the Speaker of that House.”.

- b. *See* Parliamentary Service Act 1963 [Act 394] (Repealed by the Constitution (Amendment) Act 1992 [Act A837]).
- c. This Clause which is reproduced as follows, was deleted by Act A837, paragraph 5(b), in force from 20-11-1992:

“(4) Except as otherwise expressly provided by this Article, the qualifications for appointment and conditions of service of the Clerk to the Senate and the Clerk to the House of Representatives, and of members of the staff of the Houses of Parliament, may be regulated by federal law.”.

Clause (5)

- a. The words “the staff of Parliament” substituted for the words “their staffs” by Act 14/1962, paragraph 15(b), in force from 21-06-1962.
- b. This Clause which is reproduced as follows, was deleted by Act A837, paragraph 5(b), in force from 20-11-1992:

“(5) The Clerk to the Senate, the Clerk to the House of Representatives and members of the staff of Parliament are disqualified for being members of either House of Parliament or the Legislative Assembly of any State.”.

Art. 66

Clause (1)

The words “, except as otherwise provided in this Article,” were added after the word “and” by Act A584, paragraph 2(a), in force from 20-01-1984.

(4A) If a Bill is not assented to by the Yang di-Pertuan Agong within the time specified in Clause (4), it shall become law at the expiration of the time specified in that Clause in the like manner as if he had assented thereto.

(4B) (*Repealed*).

(5) A Bill shall become law on being assented to by the Yang di-Pertuan Agong or as provided in Clause (4A), but no law shall come into force until it has been published, without prejudice, however, to the power of Parliament to postpone the operation of any law or to make laws with retrospective effect.

(5A) (*Repealed*).

(6) Nothing in this Article or in Article 68 shall invalidate any law confirming an undertaking given by the Federal Government to the effect that a Bill to which the undertaking relates shall not be presented to the Yang di-Pertuan Agong for his assent except in accordance with the undertaking.

Restriction on introduction of Bills and moving of amendments involving taxation, expenditure, etc.

67. (1) A Bill or amendment making provision (whether directly or indirectly) for—

- (a) imposing or increasing any tax or abolishing, reducing or remitting any existing tax;
- (b) the borrowing of money, or the giving of any guarantee, by the Federation, or the amendment of the law relating to the financial obligations of the Federation;
- (c) the custody of the Consolidated Fund, the charging of any money on the Consolidated Fund or the abolition or alteration of any such charge;
- (d) the payment of moneys into the Consolidated Fund or the payment, issue or withdrawal from the Consolidated Fund of any moneys not charged thereon, or any increase in the amount of such a payment, issue or withdrawal;
- (e) the compounding or remission of any debt due to the Federation;
- (f) the assignment of a tax or fee or the making of a grant to any State;

Federal Constitution

NOTES

Art. 66—(cont.)

Clause (4)

- a. The words “, and after assenting to a Bill he shall cause it to be published as a law” were deleted by Act A566, paragraph 12(a), in force from 16-12-1983.
- b. This Clause was substituted by Act A584, paragraph 2(b), in force from 20-01-1984. The original Clause read as follows:

“(4) The Yang di-Pertuan Agong shall signify his assent to a Bill by causing the Public Seal to be affixed thereto and after assenting to a Bill he shall cause it to be published as a law.”.
- c. Subsequently, Act A885, paragraph 8(a), in force from 24-06-1994, substituted Clause (4). The earlier Clause read as follows:

“(4) The Yang di-Pertuan Agong shall within thirty days after a Bill is presented to him—

 - (a) assent to the Bill by causing the Public Seal to be affixed thereto; or
 - (b) if it is not a money Bill, return the Bill to the House in which it originated with a statement of the reasons for his objection to the Bill, or to any provision thereof.”.

Clause (4A)

- a. Added by Act A584, paragraph 2(b), in force from 20-01-1984.
- b. This Clause was substituted by Act A885, paragraph 8(a), in force from 24-06-1994. The earlier Clause read as follows:

“(4A) If the Yang di-Pertuan Agong returns a Bill to the House in which it originated in accordance with Clause (4)(b), the House shall as soon as possible proceed to reconsider the Bill. If after such reconsideration the Bill is passed by the votes of not less than two-thirds of the total number of members of that House in the case of a Bill for making any amendment to the Constitution other than an amendment excepted pursuant to Article 159, and by a simple majority in the case of any other Bill, with or without amendment, it shall be sent together with the objections to the other House, by which it shall likewise be reconsidered, and if similarly approved by members of that House, the Bill shall again be presented to the Yang di-Pertuan Agong for assent and the Yang di-Pertuan Agong shall give his assent thereto within thirty days after the Bill is presented to him.”.

Clause (4B)

- a. Added by Act A584, paragraph 2(b), in force from 20-01-1984.
- b. This Clause, was repealed by Act A885, paragraph 8(b), in force from 24-06-1994 and read as follows:

“(4B) If a Bill is not assented to by the Yang di-Pertuan Agong within the time specified in Clause (4)(a) or (4A) hereof, it shall become law at the expiration of the time as specified in Clause (4)(a) or (4A), as the case may be, in the like manner as if he had assented to it.”.

Clause (5)

- a. The original Clause was substituted by Act A566, paragraph 12(b), in force from 16-12-1983 and read as follows:

“(5) A Bill shall become law on being assented to by the Yang di-Pertuan Agong. If for any reason whatsoever the Bill is not assented to within fifteen days of the Bill being presented to the Yang di-Pertuan Agong, he shall be deemed to have assented to the Bill and the Bill shall accordingly become law.”.
- b. Subsequently this Clause was substituted by Act A584, paragraph 2(c), in force from 20-01-1984 and read as follows:

“(5) A Bill shall become law on being assented to by Yang di-Pertuan Agong or as provided in Clause (4B) but no law shall come into force until it has been published, without prejudice, however, to the power of Parliament to postpone the operation of any law or to make laws with retrospective effect.”.
- c. The words “Clause (4A)” substituted for the words “Clause (4B)” by Act A885, paragraph 8(c), in force from 24-06-1994.

- (g) the receipt of moneys on account of the Consolidated Fund or the custody or issue of such moneys or the audit of the accounts of the Federation or a State,

being provision as respects which the Minister charged with responsibility for finance signifies that it goes beyond what is incidental only and not of a substantial nature having regard to the purposes of the Bill or amendment shall not be introduced or moved except by a Minister, and a Bill making any such provision shall not be introduced in the Senate.

(2) A Bill or amendment shall not be deemed to make provision for any of the said matters by reason only that it provides—

- (a) for the imposition or alteration of any fine or other pecuniary penalty or for the payment or demand of a licence fee or a fee or charge for any service rendered; or
- (b) for the imposition, alteration or regulation of any tax or rate by any local authority or body for local purposes.

Assent to Bills passed by House of Representatives only

68. (1) Where a money Bill is passed by the House of Representatives and, having been sent to the Senate at least one month before the end of the session, is not passed by the Senate without amendment within a month, it shall be presented to the Yang di-Pertuan Agong for his assent unless the House of Representatives otherwise directs.

(2) Where—

- (a) a Bill which is not a money Bill is passed by the House of Representatives and, having been sent to the Senate at least one month before the end of the session, is not passed by the Senate or is passed by the Senate with amendments to which the House of Representatives does not agree; and
- (b) in the following session (whether of the same Parliament or not) but not earlier than one year after it was first passed by the House of Representatives the same Bill, with no other alterations than those mentioned in Clause (3), is passed again by the House of Representatives and

Federal Constitution

NOTES

Art. 66—(cont.)

Clause (5A)

- a. Added by Act A566, paragraph 12(b), in force from 16-12-1983.
- b. This Clause was repealed by Act A584, paragraph 2(d), in force from 20-01-1984 and read as follows:

“(5A) No law shall come into force until it has been published, without prejudice, however, to the power of Parliament to postpone the operation of any law or to make laws with retrospective effect.”.

Art. 67

1. *See* Art. 66(2).

Clause (1)

The words “(whether directly or indirectly)” and the words “being provision as respects which the Minister charged with responsibility for finance signifies that it goes beyond what is incidental only and not of a substantial nature having regard to the purposes of the Bill or amendment” which appear after paragraph (g) were inserted and the words “any such provision” substituted for the words “provision for any such matter” by Act 14/1962, section 16, in force from 15-07-1962.

2. *See* Art. 68(6).

Art. 68

See Art. 66(1), (3) & (6).

sent to the Senate at least one month before the end of the session and is not passed by the Senate or is passed by the Senate with amendments to which the House of Representatives does not agree,

the Bill shall, unless the House of Representatives otherwise directs, be presented to the Yang di-Pertuan Agong for his assent with such amendments, if any, as may have been agreed to by both Houses.

(3) The alterations referred to in Clause (2) are alterations certified by the Speaker of the House of Representatives to be necessary owing to the time which has elapsed since the Bill was passed in the earlier session or to represent amendments made in that session by the Senate.

(4) When a Bill is presented to the Yang di-Pertuan Agong in pursuance of this Article it shall bear a certificate of the Speaker of the House of Representatives that the provisions of this Article have been complied with, and that certificate shall be conclusive for all purposes and shall not be questioned in any court.

(5) This Article does not apply to any Bill for making any amendment to this Constitution, other than an amendment excepted from the provisions of Clause (3) of Article 159.

(6) In this Article “money Bill” means a Bill which, containing in the opinion of the Speaker of the House of Representatives only provisions dealing with all or any of the following matters, that is to say—

(a) the matters mentioned in Clause (1) of Article 67 or the regulation of any tax;

(b) the reduction of any such amount as is mentioned in paragraph (d) of Clause (1) of Article 67; and

(c) any matter incidental to those matters or any of them,

is certified by him as a money Bill.